

2. 9:00 AM CASE NUMBER: C25-03287
CASE NAME: JOSEPH WAINAUSKAS VS. DAVE & BUSTER'S MANAGEMENT, LLC
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 10. If the tentative ruling is uncontested, this CMC is continued to December 4, 2026 at 8:30 a.m. in Dept. 16. The Parties are ordered to meet and confer to discuss ADR and to file a CMC statement.

3. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 10. This CMC is continued to September 16, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: MSC21-00659
CASE NAME: TAJ LOCKETT VS BROKER SOLUTIONS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS NO. 1-3**
FILED BY: LOCKETT, TAJ
TENTATIVE RULING:

Summary

Plaintiff Taj Lockett ("Plaintiff" or "Lockett"), individually and in her representative capacity, filed this Motion to Compel Defendant New American Funding LLC's ("Defendant" or "NAF") Further Responses to Special Interrogatories Nos. 1-3 and for sanctions in the amount of \$14,310. As set forth below, this motion is **granted** in part and **denied** in part.

Background

Plaintiff Taj Lockett commenced this Private Attorneys General Act ("PAGA") action against her former employer New American Funding, LLC ("NAF"), alleging systematic violations of Labor Code section 2751(a). That statute requires commission contracts to be in writing and set forth the method by which commissions are computed and paid. Lockett contends that NAF's commission plans fail to disclose the "lean in" policy, whereby loan officers may reduce customer costs by accepting a commensurate reduction in their commissions. She seeks to represent a class of "aggrieved employees" defined as all persons employed by NAF in California as loan officers or their functional equivalent from September 6, 2019 to the present, estimated at 3,068 individuals.

Following the United States Supreme Court's decision in *Viking River Cruises, Inc. v. Moriana*, [citation omitted] the parties arbitrated Lockett's individual PAGA claims. In August 2024, Arbitrator Brian C.